

		Plaintiff raised a triable issue of material fact as to whether Butrica or Antanaitis played any role in Blackburn’s decision to eliminate Plaintiff’s position. (DMF No. 46 and 53; Plaintiff’s Compendium of Exhibits, Part 2 of 5, Exhibit O, 187:10-23 and 189:25-191:18.) Accordingly, the motion for summary adjudication is denied. Issue 7: Plaintiff’s Fourth Cause of Action for Violation of California Labor Code section 232.5 fails as a matter of law because Defendants can establish that they eliminated Plaintiff’s position for legitimate, non-retaliatory, and non-pretextual reasons. Defendants met their initial burden to show Defendants terminated Plaintiff for legitimate, non-retaliatory reasons. (DMF No. 42, 44, 47, 48, and 54.) Plaintiff met her shifted burden to show Defendants’ motive was pretextual and also raised a triable issue of material fact as to whether Butrica and Antanaitis played any role in Blackburn’s decision to eliminate Plaintiff’s position. (DMF No. 46 and 54; Plaintiff’s Compendium of Exhibits, Part 2 of 5, Exhibit O, 187:10-23 and 189:25-191:18; Plaintiff’s Compendium of Evidence, Part 4 of 5, Exhibit R, 265:20-266:23.) Accordingly, the motion for summary adjudication is denied. Issue 8: Plaintiff’s derivative Fifth Cause of Action for Wrongful Termination in Violation of Public Policy fails as a matter of law because Plaintiff’s underlying claims under the FEHA and California Labor Code claims (Plaintiff’s First, Third, and Fourth Causes of Action) fail as a matter of law. For the reasons set forth above, Defendants did not show Plaintiff’s underlying claims under FEHA and the Labor Code fail as a matter of law. Accordingly, the motion for summary adjudication on this issue is denied. Summary judgment For the reasons set forth below, Defendants’ motion for summary judgment is denied. Plaintiff shall give notice.
11	Popal vs. Sajjadian 2024-01384261	1. Motion for Reconsideration 2. Motion to Vacate Withdrawn

12	S & L Medical Group, Inc. vs. Travelers Property Casualty Company of America 2024-01420585	Motion for Judgment on the Pleadings Defendant Joydan Group, LLC's unopposed motion for judgment on the pleadings as to Plaintiff S & L Medical Group, Inc.'s third cause of action for breach of contract is granted with 15 days leave to amend. Defendant's request for judicial notice is granted. A motion for judgment on the pleadings may be made, and granted, on the same grounds as a general demurrer. (<i>Stoops v. Abbassi</i> (2002) 100 Cal. App. 4th 644, 650; Code Civ. Proc. § 438(c)(1)(B)(ii).) As in with a demurrer, the grounds for judgment on the pleadings must appear on the face of the complaint or be based on facts that the court may judicially notice. (Code Civ. Proc. § 438(d).) Plaintiff alleges in the Complaint that on 10/29/00, it and Joydan entered into a written lease agreement. Plaintiff states that this agreement is attached as Ex. A to the Complaint and incorporated therein. (Complaint, ¶ 6.) Plaintiff alleges that subsequently, the lease was amended twice, referencing Exhibits B and C attached to the Complaint. (Complaint, ¶¶ 7, 8.) Plaintiff's Exhibit A is not a contract between Plaintiff and Joydan. Rather, it is a contract dated October 20, 2000 between Plaintiff and Anaheim Surgical Center, LLC. While Plaintiff attaches two amendments to the lease which do name Defendant as a party, these amendments are dependent on the original lease which is not included with Plaintiff's Complaint. Plaintiff did not oppose this motion. Accordingly, the motion for judgment on the pleadings is granted with leave to amend, as Plaintiff fails to allege a claim for breach of lease against Defendant Joydan. Defendant shall give notice.
13	Wilson vs. Dan 2025-01523063	Motion for Judgment on the Pleadings Continued to 6/29/2026